

Court No. - 39

Case :- WRIT - C No. - 43415 of 2014

Petitioner :- Dinesh Chandra

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Sunil Kumar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Heard Shri Sunil Kumar, learned counsel for the petitioner, learned Standing Counsel for the respondent no. 3 and Shri Shrawan Kumar Srivastava, who has accepted notice on behalf of the respondent nos. 1 and 2.

Petitioner has approached this Court challenging the citation dated 14.07.2014 issued by respondent no. 2 for recovery of a sum of Rs.34,882/- from him towards consumption of electrical energy.

Learned counsel for the petitioner contends that petitioner is ready and willing to deposit the entire amount in instalments.

Shri Shrawan Kumar Srivastava, learned counsel appearing for the respondent-Corporation points out that under Clause 6.14 of the U.P. Electricity Supply Code, 2005, Executive Engineer, D.G.M. and General Manager are empowered with the authorities to extend the facility of instalments to the consumers, who are in financial distress. The petitioner may approach the relevant authorities along with representation in this regard.

Accordingly, the writ petition stands disposed of with liberty to the petitioner to make representation before the authority concerned in accordance with the provision of Clause 6.14 of the U.P. Electricity Supply Code, 2005 within a period of three weeks from today and, in case, any such representation is made, the authority concerned shall proceed to decide the same in accordance with law, expeditiously preferably within a further period of one month from the date of making of the representation.

Order Date :- 21.8.2014

VKS